

Order prepared by the court

FILED
San Francisco County Superior Court

JUL 01 2026

CLERK OF THE COURT

BY: [Signature]
Deputy Clerk

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Dept. 301

FRANCISCO DYLAN ROSARIO,

Plaintiff,

v.

CSAA INSURANCE EXCHANGE, et al.,

Defendants.

Case No. CGC-25-631802

**ORDER GRANTING SPECIAL
MOTION TO STRIKE FIRST
AMENDED COMPLAINT AND
DENYING OTHER RELIEF**

This order disposes of all motions that were heard in this case in Department 301 on June 24, 2026.

Order on Special Motion to Strike

Defendant CSAA Insurance Exchange's special motion to strike plaintiff's First Amended Complaint is granted. Plaintiff's first amended complaint (FAC), filed on February 25, 2026, alleges that he was harmed by CSAA's misrepresentation in its letter denying an insurance claim that it had made and concluded an investigation. According to the FAC, he was damaged because the letter led him to believe that evidence had been collected and preserved and CSAA had made an adequate investigation. Although plaintiff

1 now seeks to recharacterize the FAC as targeting the denial itself and not the representations
2 in the letter, the FAC pleads that plaintiff was harmed by the representation.

3 The court broadly construes the anti-SLAPP statute. (Code Civ. Proc., § 425.16, subd.
4 (a)¹.) Courts deciding anti-SLAPP motions use a two-step procedure. If the defendant shows
5 that the plaintiff's claims arise from protected activity (prong one), then the burden "shifts to
6 the plaintiff to demonstrate the merit of the claim by establishing a probability of success"
7 (prong two). (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384.) Under prong two, the plaintiff must
8 make a "prima facie factual showing sufficient to sustain a favorable judgment." (*Id.* at 385.)
9 In performing its analysis, the court looks to the pleadings, declarations or affidavits, and
10 judicially noticeable material concerning the facts upon which liability is based. (§ 425.16,
11 subd. (b)(2).)

12
13 "[A] claim may be struck only if the speech or petitioning activity *itself* is the wrong
14 complained of, and not just evidence of liability or a step leading to some different act for
15 which liability is asserted." (*Park v. Board of Trustees of California State University* (2017)
16 2 Cal.5th 1057, 1060.) Defendant meets prong one of the anti-SLAPP statute as the First
17 Amended Complaint ("FAC") arises from protected activity under § 425.16, subdivision
18 (e)(2) ["any written or oral statement or writing made in connection with an issue under
19 consideration or review by a...judicial body"]. Plaintiff's action is based on defendant's
20 litigation conduct. (FAC, par. 22F.) "Statements made in litigation, or in connection with
21 litigation, are protected by" the anti-SLAPP statute. (*Bergstein v. Stroock & Stroock & Lavan*
22 *LLP* (2015) 236 Cal.App.4th 793, 803; *City of Colton v. Singletary* (2012) 206 Cal.App.4th
23 751, 767 [filing motions and other litigation conduct triggers the anti-SLAPP statute].)

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25
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27
28 ¹ All subsequent statutory citations are to the Code of Civil Procedure except where
otherwise noted.

1 Plaintiff's pre-litigation denial letter also implicates the anti-SLAPP statute. (FAC,
2 pars. 1, 2, 4, 22D.) "Case law establishes that communications that are intimately
3 intertwined with, and preparatory to, the filing of judicial proceedings qualify as petitioning
4 activity for the purpose of the anti-SLAPP statute." (*Cabral v. Martins* (1999) 177
5 Cal.App.4th 471, 482; see also *Salma v. Capon* (2008) 161 Cal.App.4th 1275, 1285 [notice
6 of rescission of contract given as prerequisite to litigation was protected communication
7 under § 425.16].)

9 Plaintiff's illegality argument fails. "Conduct that would otherwise come within the
10 scope of the anti-SLAPP statute does not lose its coverage ... simply because it is alleged to
11 have been unlawful or unethical. An exception to the use of section 425.16 applies only if a
12 defendant concedes, or the evidence conclusively establishes, that the assertedly protected
13 speech or petition activity was illegal as a matter of law. The exception does not apply here."
14 (*Birkner v. Lam* (2007) 156 Cal.App.4th 275, 285 [citation simplified].)

16 Section 425.17, subdivision (b), does not apply. Plaintiff is not bringing this action
17 "solely in the public interest or on behalf of the general public." Section 425.17, subdivision
18 (c), is also inapplicable because defendant was not promoting commercial activity towards
19 the plaintiff. Rather, defendant was engaging in litigation-related activity.

21 Since defendants meet prong one, the plaintiff must establish via admissible evidence
22 a probability of prevailing on the claims (prong two). (See *Computer Xpress, Inc. v. Jackson*
23 (2001) 93 Cal.App.4th 993, 1010.) Plaintiff cannot establish his claims because the litigation
24 privilege bars them. (Civ. Code, § 47, subd. (b).)

26 "The usual formulation is that the privilege applies to any communication (1) made in
27 judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law;
28 (3) to achieve the objects of the litigation; and (4) that [has] some connection or logical
relation to the action." (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 212.) Defendants establish

1 these elements. “Any doubt about whether the privilege applies is resolved in favor of
2 applying it.” (*Kashian v. Harriman* (2002) 98 Cal.App.4th 892, 913.) The privilege applies
3 to defendant’s defense conduct including the prelitigation denial letter. (*Dove Audio, Inc. v.*
4 *Rosenfeld, Meyer & Susman* (1996) 47 Cal.App.4th 777, 784 [“Just as communications
5 preparatory to or in anticipation of the bringing of an action or other official proceeding are
6 within the protection of the litigation privilege of Civil Code [§ 47(b)], we hold that such
7 statements are equally entitled to the benefits of section 425.16.”]; *Nguyen v. Proton*
8 *Technology Corp.* (1999) 69 Cal.App.4th 140, 147 [The California Supreme Court “made
9 clear that the ‘litigation privilege’ applies to pre-litigation communications as well as those
10 occurring during the course of actual litigation.”].)

12 The court therefore grants the special motion to strike the First Amended Complaint.

13 Defendant’s request for fees is denied without prejudice to a subsequent motion. The
14 court cannot grant fees on the basis of a reply declaration, which does not give plaintiff the
15 opportunity to respond.
16

17 Order on Motion for Leave to File Third Amended Complaint

18 Plaintiff’s renewed motion to amend is denied. There is no express or implied right to
19 amend a pleading once a special motion to strike has been granted. (See *Simmons v. Allstate*
20 *Ins. Co.* (2001) 92 Cal.App.4th 1068, 1073.)
21

22 Order on Demurrer to Amended Complaint

23 Off calendar as moot in light of the court’s order granting the special motion to strike
24 the First Amended Complaint.

25 Order on Motion to Strike Amended Complaint

26 Off calendar as moot in light of the court’s order granting the special motion to strike
27 the First Amended Complaint.
28

1 Order on Plaintiff's Motion to Strike O'Connell Declaration

2 The motion to strike portions of the O'Connell Declaration is denied as moot. In its
3 order granting the anti-SLAPP motion, the court deferred consideration of fees to a
4 subsequent motion. The court has not relied on the objected-to portions of the O'Connell
5 Declaration.
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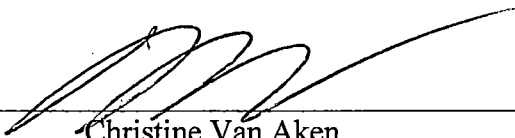
7 Order on Plaintiff's Motion to Compel Discovery

8 The motion to compel discovery is DENIED. Discovery is stayed while an anti-
9 SLAPP motion is pending. (§ 425.16, subd. (g).) The motion is now moot since the court
10 has granted the anti-SLAPP motion.

11 Order on Plaintiff's Motion for Sanctions

12 Plaintiff's motion for sanctions is denied. Defendants' anti-SLAPP motion is well-
13 taken, for the reasons explained in the order on that motion.
14

15
16 Dated: June 29, 2026

17 
Christine Van Aken
Judge of the Superior Court

I, the undersigned, certify that I am an employee of the Superior Court of California, County Of San Francisco and not a party to the above-entitled cause and that on July 01, 2026 I served the foregoing ORDER GRANTING SPECIAL MOTION TO STRIKE FIRST AMENDED COMPLAINT AND DENYING OTHER RELIEF on each counsel of record or party appearing in propria persona by causing a copy thereof to be enclosed in a postage paid sealed envelope and deposited in the United States Postal Service mail box located at 400 McAllister Street, San Francisco CA 94102-4514 pursuant to standard court practice.

Date: July 01, 2026 By: WILLIAM TRUPEK

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